

Tentative Rulings for July 9, 2026 Department PS1

**To request oral argument, you must notify Judicial Secretary
Molly Frabotta at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 520 9376**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2506302	SCOTT VS ZHANG	MOTION TO VACATE ORDER SUSTAINING DEMURRER WITHOUT LEAVE TO AMEND BY RICHARD SCOTT, PHYLLIS E. JONES

Tentative Ruling: A motion for reconsideration must be based on new or different facts, circumstances or law. (C.C.P. §1008(a).) The legislative intent was to restrict these motions to circumstances where a party offers the court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.) The burden is comparable to that of a party seeking a new trial on the ground of newly discovered evidence; that is, the information must be such that the moving party could not with reasonable diligence have discovered or produced it at trial. (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212-13.) A motion for reconsideration must be brought within 10 days of the service of the written notice of entry of the order (C.C.P. §1008(a)), while a renewal of a motion under C.C.P. §1008(b) has no explicit time limit.

“The ‘different state of facts’ language in the statute requires that the party seeking reconsideration provide both newly discovered evidence and an explanation for the failure to have produced such evidence earlier.” (*Robbins v. Los Angeles Unified School Dist.* (1992) 3 Cal.App.4th 313, 317.) “The moving party’s burden is the same as that of a party seeking new trial on the ground of ‘newly discovered evidence, which he could not, with reasonable diligence, have discovered and produced at the trial.’” (*Baldwin v. Home Savings of America* (1997) 59 Cal.App.4th 1192, 1198.) And so the moving party must provide the trial court with a satisfactory explanation as to why he or she failed to produce the evidence at an earlier time. (*Mink v. Superior Court* (1992) 2 Cal.App.4th 1338; *Lucas v. Santa Maria Public Airport Dist.* (1995) 39 Cal.App.4th 1017, 1028.)

The trial court does retain the inherent authority to change its decision at any time prior to the entry of judgment, whether it is changing its conclusion of law or findings of fact. (*Darling, Hall & Rae v. Kritt* (1999) 75 Cal.App.4th 1148, 1156; *Nave v. Taggart* (1995) 34 Cal.App.4th 1173, 1177.) The court’s inherent powers to reevaluate its prior rulings on its own motion is unaffected by the jurisdictional limitations of C.C.P. §1008 governing motions for reconsideration, so as long as the court exercises due consideration before modifying, amending, or revoking its prior orders. (*Schachter v. Citigroup, Inc.* (2005) 126 Cal.App.4th 726, 737.) However, if the court is inclined to reconsider on its own motion, whether at the prompting of a motion that fails to meet with the procedural requirements of C.C.P. §1008 or because of “an unprovoked flash of understanding in the middle of the night,” “[t]o be fair to the parties, if the court is seriously concerned that one of its prior interim rulings might have been erroneous, and thus that it might want to reconsider that ruling on its own motion... it should inform the parties of this concern, solicit briefing, and hold a hearing.” (*Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1108.)

Plaintiffs’ motion cites no new or different facts, circumstances, or law. The court notes that Plaintiffs motion, while labelled as being made pursuant to CCP 1108 and

473(b), in terms of the motion for reconsideration, the argument is based upon their reminding the court of its inherent authority to correct their own errors. (*Id* at 1108-1109.) However, in this circumstance the court declines to reconsider its prior ruling regarding the sustaining of the demurrer to the First Amended Complaint without leave to amend.

Plaintiffs' motion also moves to vacate the order under CCP 473(b), which states "The court may, upon any terms as may be just, relieve a party of the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party **through the party's mistake, inadvertence, surprise, or excusable neglect.**" (CCP 473(b), emphasis added.) Here, Plaintiffs' motion does not address any type of error committed by Plaintiffs, but instead highlights their belief of the court's error in application of law in the demurrer to the First Amended Complaint.

Motion to Vacate Order Sustaining Demurrer to the First Amended Complaint Without Leave to Amend is DENIED.

Case Management Conference is continued to September 10, 2026.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2507284	KORETOFF VS THE BIG DEAL SOLAR INC.	MOTION TO SET ASIDE DEFAULT

Tentative Ruling: A motion for relief from default must be filed within six months of the clerk's entry of default and also within a "reasonable time" after discovery of the default. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 234.) A delay of three or more months or more is an unofficial standard under which courts will routinely deny relief unless there is a satisfactory explanation for the delay. (*Stafford v. Mach* (1998) 64 Cal.App.3d 1174, 1184.) The time runs from the entry of the default, not the default judgment. (*Pulte Homes Corp. v. Williams Mechanical, Inc.* (2016) 2 Cal.App.5th 267, 273.)

The application for relief "shall be accompanied by a copy of the answer or other pleading proposed to be filed ... otherwise the application shall not be granted." (C.C.P. § 473(b).) If the order to be set aside is the result of a failure to provide discovery responses, for example, the application must be accompanied by verified responses to the discovery requests. (*Rodriguez v. Brill* (2015) 234 Cal.App.4th 715, 729.)

Defendant has failed to procedurally comply with CCP 473(b) in failing to submit a copy of an answer or other responsive pleading. Additionally, the motion to set aside default is signed "The Big Deal Solar, Inc. Defendant, Self-Represented". A corporation is not permitted to represent itself in California. *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141.

Motion to Set Aside Default DENIED.

Case Management Conference on July 9, 2026 is VACATED.

OSC re Status of Representation of The Big Deal Solar, Inc. is VACATED.

OSC re default judgment is set for December 22, 2026.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2602614	GONZALEZ VS LALEZARY LAW FIRM, LLP	MOTION TO COMPEL ARBITRATION BY LALEZARY LAW FIRM, LLP, LAW BROTHERS LLC, SHERVIN LALEZARY, SHAWN LALEZARY -AND JOINDER- NOTICE OF JOINDER BY DEFENDANT LALEZARY, LLC IN DEFENDANTS' MOTION TO COMPEL ARBITRATION

Tentative Ruling: Because a motion to transfer venue operates as a stay of any other motion or pending proceeding (*Pitwick Stages System v. Superior Court in and for Los Angeles County* (1934) 138 Cal.App. 448, 449), the court must rule on the motion to transfer venue first. Once the court grants the motion to transfer venue, the transferor court loses jurisdiction and the transferee court must rule on any proceedings after it receives the file. (See *London v. Morrison* (1950) 99 Cal.App.2d 876, 879-880.) As a result, there is no jurisdiction to rule on the motion to compel arbitration.

Motion to Compel Arbitration and Joinder by Defendant Lalezary, LLC continued to 10.22.26 pending transfer to Los Angeles County Superior Court.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2602614	GONZALEZ VS LALEZARY LAW FIRM, LLP	MOTION FOR CHANGE OF VENUE ON COMPLAINT FOR PROFESSIONAL NEGLIGENCE OF JENNIE LYNN GONZALEZ BY LALEZARY LAW FIRM, LLP, LAW BROTHERS LLC, SHERVIN LALEZARY, SHAWN LALEZARY

Tentative Ruling: Code of Civil Procedure section 397 provides the court may transfer venue upon motion. The burden is on the moving party to establish whatever facts are needed to justify transfer. (*Mission Imports, Inc. v. Superior Court (Monterey Bay Co., Inc.)* (1982) 31 Cal.3d 921, 929; *Los Angeles v. Pac. Tel. & Tel. Co.* (1958) 164 Cal.App.2d 253, 260.) Venue is determined based on the complaint on file at the time the motion to change venue is made. (*Brown v. Superior Court (C.C. Myers, Inc.)* (1984) 37 Cal.3d 477, 482.) The general rule is that unless otherwise provided by law, a defendant is entitled to have an action tried in the county of his or her residence. (*Id.* at 483; *Capp Care, Inc. v. Superior Court* (1987) 195 Cal.App.3d 504, 507-508; Code Civ. Pro. § 395.) For venue purposes, actions are either local or transitory. (*Brown, supra*, 37 Cal.3d at 482 fn. 5.) To determine whether it is local or transitory, the court looks to the main relief sought with personal relief is transitory and real property is local. (*Ibid.*) Local venue is also provided by special statutes that prescribe local venue for certain proceedings. (*Capp Care, supra*, 195 Cal.App.3d at 508.)

First, as to the JAMS Defendants, their inclusion is irrelevant. As Defendants filed this motion on 5/18/26, the original complaint was in effect and therefore is dispositive. The original complaint did not include the JAMS Defendants.

Second, as to the venue clause provision, there is a split of authority. In *Alexander v. Superior Court* (2003) 114 Cal.App.4th 723, 731-732, the Sixth District held that a venue selection clause was void as against public policy. In contrast, *Battaglia Enterprises, Inc. v. Superior Court* (2013) 215 Cal.App.4th 309, 315-318 rejected *Alexander* and held that a venue selection clause was valid and enforceable if it satisfied the statutory venue clauses.

Thus, the correct issue is where is venue proper. Here, Defendants demonstrate that venue is correct in Los Angeles County as they reside there. (Code Civ. Pro. § 395(a).) (Lalezary Decl. ¶¶2.) The action is transitory as the Plaintiff's claims relate to legal malpractice. This is not an action for personal injury or death, personal property injury, or breach of contract, where venue may be proper at the location of where the injury occurred, or where the contract was entered or to be performed. (Code Civ. Pro. § 395(a).) Plaintiff does not provide any alternative venue statutes which would indicate Riverside County would be a proper venue. This is a legal malpractice action—not an action to litigate the underlying car accident. Thus, Los Angeles County is the proper venue.

Motion to Transfer Venue GRANTED.

Case ordered transferred out to Los Angeles County Superior Court.

Riverside County Superior Court ordered to prepare a transfer of file packet and Defendants to file proposed transfer order within 20 days of this order.

Defendants to pay Transfer Fee of \$50 payable to Riverside County Superior Court, to be submitted within 20 days.